

26STCV09625 26STCV09625

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-09-09

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Case Number: 26STCV09625 Hearing Date: September 9, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

ANTHONY

K. MITCHELL, JR.

;

Plaintiff,

vs.

BMO BANK

;

Defendant.

Case

No.:

26STCV09625

Hearing

Date:

September
9, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

order to show cause why the court should not
grant a motion for judgment on the pleadings

Order to Show Cause Why the Court Should on Its Own
Motion Should Not Grant a Motion for Judgment on the Pleadings on in Favor of
Defendant on the Ground the Complaint Does Not State Facts Sufficient to
Constitute a Cause of Action Against Defendant

Plaintiff

Anthony K. Mitchell, Jr. ("Plaintiff") filed the operative Complaint in this
action on March 25, 2026, against defendant BMO Bank ("Defendant").

On

August 11, 2026, the court issued a minute order setting for hearing an Order
to Show Cause why the court on its own motion should not grant a motion for
judgment on the pleadings in favor of defendant on the ground that the
complaint does not state facts sufficient to constitute a cause of action
against defendant. (August 11, 2026
minute order, p. 1.) The clerk served
Plaintiff with a copy of the court's August 11, 2026 minute order. (August 11, 2026 Certificate of Mailing, p.
1.) Plaintiff did not file a response to
the Order to Show Cause.

Upon

review of the Complaint filed on March 25, 2026, the court finds that it does
not state facts sufficient to constitute a cause of action against Defendant,
including because Plaintiff has not alleged (1) any facts setting forth the
alleged wrongful acts or omissions of Defendant in support of each cause of

action, and (2) each element of each asserted cause of action. (Code Civ. Proc., § 438, subd. (c)(3)(B)(ii).) The court therefore grants its own motion for judgment on the pleadings in favor of Defendant on Plaintiff's Complaint. (Ibid.) The court grants its own motion for judgment on the pleadings without leave to amend because Plaintiff did not meet their burden to articulate how they can amend the Complaint to render it sufficient against Defendant, including because Plaintiff did not file a response to the Order to Show Cause setting forth the facts that can be alleged and what causes of action those facts can support. (Palm Springs Villas II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290 [burden is on the plaintiff to articulate how they could amend their pleading to render it sufficient].)

ORDER

The court grants its own motion for judgment on the pleadings on plaintiff Anthony K. Mitchell, Jr.'s Complaint, filed in this action on March 25, 2026, without leave to amend.

The court orders that this action is dismissed.¿ (Code Civ. Proc., § 581, subd. (m).)¿

The court directs the clerk to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 9, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court